

Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. v. Har Narayan & Another

High Court of Judicature at Allahabad · Division Bench · 21 April 2022 · Writ-C No. 6811 of 2022 · **Writ petition dismissed; no order as to costs. The petitioner-licensee (Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.) challenged under Article 226 the order dated 19.3.2021 by which Respondent no.2, in Complaint Case No. 13 of 2020, allowed the consumer's (Har Narayan's) complaint in part and directed the licensee to treat 20.8.1997 as the date of permanent disconnection and to complete formalities for issuance of a final bill. The Division Bench held that the manner in which permanent disconnection is to be effected is set out in Clause 4.38 of the U.P. Electricity Supply Code, 2005, and that Clause 4.20(h) governs the consequential adjustment of dues, refund of security and interest on finalisation of permanent disconnection. On the record the consumer had established (through paper no. 4Ka/2 bearing a signature and through affidavits) that permanent disconnection was done on 20.8.1997 and the meter uprooted, yet the licensee never issued the permanent-disconnection receipt or the final bill. The licensee, though given opportunity, filed no objection to the complaint and, even before the High Court, produced nothing (only a bill dated 31.5.2015 showing nil readings and a bill register) to displace that finding. The Bench held that the pure finding of fact recorded by the forum could not be the subject of judicial review, that the writ court cannot sit in appeal over such an order under Article 226 absent anything on record to hold otherwise, and that this was not a fit case for the exercise of writ jurisdiction.**

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HEADNOTE

The manner of effecting permanent disconnection is governed by Clause 4.38 of the U.P. Electricity Supply Code, 2005, and the consequential adjustment of dues, refund of security and interest on its finalisation by Clause 4.20(h); and a statutory forum's pure finding of fact on the date of permanent disconnection is not open to judicial review under Article 226. The consumer's father held a commercial connection; the consumer complained (Complaint Case No. 13 of 2020) that permanent disconnection had been applied for and effected on 20.8.1997 with the meter uprooted, but that the licensee never issued a disconnection receipt or a final bill. By order dated 19.3.2021 Respondent no.2 allowed the complaint in part and directed the licensee to treat 20.8.1997 as the date of permanent disconnection and to issue a final bill. The licensee's writ petition was dismissed. The Division Bench held that Clause 4.38 sets out the procedure and manner for permanent disconnection and that Clause 4.20(h) deals with the adjustment of all dues within 30 days upon termination of the agreement and finalisation of permanent disconnection, with interest at the Reserve Bank of India rate where payment is delayed beyond 90 days. On the record the consumer had established the fact of permanent disconnection on 20.8.1997 (paper no. 4Ka/2 and affidavits), while the licensee, despite opportunity, filed no objection to the complaint and produced nothing before the forum or the High Court — only a bill dated 31.5.2015 showing nil previous, current and difference readings and a bill register — to substantiate its claim that disconnection had not occurred. The forum's finding was a pure finding of fact, which cannot be the subject matter of judicial review; the High Court under Article 226 cannot sit in appeal over such an order where there is nothing on record to hold otherwise, and the matter was not a fit case for the exercise of writ jurisdiction.

FACTUAL SUMMARY

The connection in question, a commercial electricity connection (no. 2156/040629), had been granted to the consumer's father, Sri Dasi Ram of 128/16, Saiyar Gate Bahar, Jhansi. Respondent no.1, Har Narayan, instituted Complaint Case No. 13 of 2020 (Har Narayan v. Dakshinanchal Vidyut Vitran Nigam Ltd.) before Respondent no.2, alleging that permanent disconnection of the connection had been applied for and that, on 20.8.1997, the officers/employees of the licensee permanently disconnected the connection and uprooted the meter, but that no receiving/acknowledgment, as required by law, was given; that on 27.11.2012 an affidavit in the prescribed proforma was submitted by Mewa Lal and Laxmi Narayan attesting to the permanent disconnection of 20.8.1997; and that, no receiving or permanent-disconnection order having been issued, he pursued the matter and represented it to the licensee on 23.8.2016. Aggrieved by the non-issuance of a final bill after the disconnection, he filed the complaint. Notices were issued to the licensee, which filed no reply or objection. By order dated 19.3.2021 Respondent no.2 allowed the complaint in part and directed the petitioner-licensee to treat 20.8.1997 as the date of permanent disconnection and to complete the formalities for issuance of a final bill. The Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., challenged that order under Article 226, contending that it was perverse and contrary to the record because a meter reading noted on 16.11.2005 showed 13,310 units as consumed, and referring also to an electricity bill dated 31.5.2015 and the bill register, so as to argue that permanent disconnection could not have been effected on 20.8.1997. The Division Bench

REUSABLE CONSTRUCTIONS

1. The manner and procedure for effecting permanent disconnection of a supply are governed by Clause 4.38 of the U.P. Electricity Supply Code, 2005; where a consumer establishes that permanent disconnection was applied for and effected (the meter uprooted) but the licensee failed to issue the permanent-disconnection receipt or the final bill, the complaint forum may direct the licensee to treat the established date as the date of permanent disconnection and to complete the formalities for issuance of a final bill. **order of 21.4.2022**
2. Clause 4.20(h) of the Code governs the consequences of finalisation of permanent disconnection — refund of the security deposit and adjustment of all dues within 30 days upon termination of the agreement, with interest at the Reserve Bank of India bank rate where payment is delayed beyond 90 days. **order of 21.4.2022**
3. A pure finding of fact recorded by the statutory complaint forum (here, as to the date of permanent disconnection) is not the subject matter of judicial review; the High Court under Article 226 does not sit in appeal over such a finding where there is nothing on record to hold otherwise. **order of 21.4.2022**
4. Where a licensee, though granted opportunity, files no objection to the consumer's complaint and produces no material to substantiate its stand, it cannot later assail the resulting factual finding as perverse in writ jurisdiction. **order of 21.4.2022**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

RATIO

Permanent disconnection is governed by Clause 4.38; where disconnection was effected but no receipt or final bill issued, the forum may direct the licensee to treat the established date as the date of permanent disconnection and issue a final bill

QUESTION

By what provision is the manner of effecting permanent disconnection governed, and may a complaint forum direct the licensee to treat an established date as the date of permanent disconnection and to issue a final bill where the disconnection was effected but no receipt or final bill was ever issued?

HOLDING

Clause 4.38 of the Code clearly sets out the procedure and manner in which permanent disconnection is to be done. On the record the consumer had established that permanent disconnection was applied for and, on 20.8.1997, the connection was disconnected and the meter uprooted (shown by paper no. 4Ka/2 bearing the signature of one Sri Nanhe Singh and by affidavits), yet the licensee issued neither the permanent-disconnection receipt nor the final bill. In those circumstances the forum's direction to treat 20.8.1997 as the date of permanent disconnection and to complete the formalities for issuance of a final bill was proper and warranted no interference. **order of 21.4.2022**

EVIDENCE “the procedure and the manner, according to which permanent disconnection is to be done, is clearly set out under the provisions contained under clause 4.38 of the Code” **order of 21.4.2022**

EVIDENCE “neither the permanent disconnection receipt, nor the final bill after permanent disconnection was issued or handed over by the petitioner to Respondent no.1” **order of 21.4.2022**

FLAG Prose order of a single date, without printed page numbers or numbered paragraphs (pin_basis=date; pins render as 'order of 21.4.2022'). Clauses 4.20 and 4.38 of the Code are reproduced in the order.

HOLDING-UNIT · UP-2005::4.20(h)

OBITER

On finalisation of permanent disconnection, Clause 4.20(h) requires adjustment of all dues and refund of security within 30 days of termination of the agreement, with RBI-rate interest where payment is delayed beyond 90 days

QUESTION

What are the consequences under the Code, as to dues, security and interest, on finalisation of permanent disconnection?

HOLDING

Clause 4.20(h) deals with the contingency of interest and the adjustment of all dues within 30 days upon termination of the agreement and finalisation of the permanent disconnection; where the delay in payment exceeds 90 days, interest at

the rate specified by the Reserve Bank of India is payable. Read with Clause 4.38, this shows that finalisation of a permanent disconnection carries a statutory obligation to draw up and issue the final account, which the licensee here had failed to discharge. **order of 21.4.2022**

EVIDENCE “further clause 4.20 (h) also deals with the contingency attracting interest as well as adjustment of all the dues within 30 days upon termination of the agreement and finalization of the permanent disconnection” **order of 21.4.2022**

FLAG Cited in support of the Clause 4.38 obligation; the order did not quantify the final bill or the security refund/interest, which follow on the licensee's compliance.

INTERPLAY · OFFTOPIC::article-226-no-review-of-forum-findings-of-fact

RATIO

A pure finding of fact recorded by the complaint forum is not open to judicial review; the writ court does not sit in appeal over such an order under Article 226

QUESTION

Can the High Court, under Article 226, review or sit in appeal over a pure finding of fact recorded by the statutory complaint forum as to the date of permanent disconnection?

HOLDING

No. The forum had recorded a pure finding of fact, which cannot be the subject matter of judicial review, particularly where there was nothing on the record to substantiate the licensee's claim that permanent disconnection had not been done on 20.8.1997. The High Court under Article 226 cannot sit in appeal over such an order; the licensee, having filed no objection to the complaint despite opportunity and having produced nothing to displace the finding, could not have the order interfered with, and the case was not a fit one for the exercise of writ jurisdiction. **order of 21.4.2022**

EVIDENCE “Pure finding of fact has been recorded by Respondent no.1, which cannot be the subject matter of judicial review in the present case, particularly when there is nothing on record before this Court so as to substantiate the fact that permanent disconnection has not been done on 20.8.1997” **order of 21.4.2022**

EVIDENCE “This Court under Article 226 of the Constitution of India cannot sit in appeal over the orders passed by Respondent no.1” **order of 21.4.2022**

FLAG The order's own text says 'Respondent no.1' where it means the forum, Respondent no.2, that passed the impugned order; quoted verbatim. OFFTOPIC: a general Article 226 review-limitation applied to an electricity complaint order.

PRINCIPLE TAGS

permanent-disconnection-procedure-governed-by-clause-4.38 The manner and procedure for effecting permanent disconnection are governed by Clause 4.38 of the Code; a forum may direct the licensee to treat an established date as the date of permanent disconnection and to issue the final bill where the disconnection was effected but no receipt or final bill was issued. **order of 21.4.2022**

security-refund-and-dues-adjustment-on-finalisation-of-permanent-disconnection Clause 4.20(h) requires adjustment of all dues and refund of security within 30 days of termination of the agreement on finalisation of permanent disconnection, with RBI-rate interest for delay beyond 90 days. **order of 21.4.2022**

disputed-questions-of-fact-not-adjudicable-under-article-226 A pure finding of fact recorded by the statutory complaint forum on the date of permanent disconnection is not open to judicial review; the writ court does not sit in appeal over it absent anything on record to the contrary. **order of 21.4.2022**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PERMANENT DISCONNECTION HAD IN FACT BEEN EFFECTED ON 20.8.1997, AS AGAINST THE LICENSEE'S CLAIM (A 16.11.2005 METER READING OF 13,310 UNITS AND LATER BILLING) THAT THE CONNECTION REMAINED LIVE

The Court declined to re-examine this, holding it a pure finding of fact recorded by the forum and not subject to judicial review under Article 226; the licensee had produced nothing to displace the finding. **order of 21.4.2022**

NOT DECIDED — THE QUANTUM OF THE FINAL BILL AND OF ANY SECURITY REFUND OR INTEREST

Left to follow from the licensee's compliance with the direction to issue a final bill; not quantified in the order. **order of 21.4.2022**

SCJ-1257 — A Clause 4.38 permanent-disconnection matter involving the same licensee (Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.) — closest spine sibling on the disconnection procedure.

SCJ-1847 — Clause 4.38 permanent-disconnection sibling on the manner and consequences of effecting permanent disconnection.

SCJ-357 — Clause 4.38 permanent-disconnection sibling.

SCJ-363 — Article 226 finding-of-fact sibling arising in the Dakshinanchal distribution area — writ court declining to disturb the forum's factual finding.

SCJ-1981 — Applies the same principle relied on here, that disputed questions of fact are not adjudicable under Article 226.

SCJ-2220 · Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. v. Har Narayan & Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.